

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3695

By: Gise of the House

and

7 **Hamilton** of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to motor vehicles; amending 47 O.S.
12 2021, Section 11-904, as amended by Section 65,
13 Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section
14 11-904), which relates to personal injury accidents;
15 modifying scope of certain defined term; and
16 providing an effective date.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-904, as
19 amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025,
20 Section 11-904), is amended to read as follows:

21 Section 11-904. A. Any person who is involved in a personal
22 injury accident while driving or operating a motor vehicle within
23 this state and who is in violation of the provisions of subsection A
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1 of Section 11-902 of this title may be charged with a violation of
2 the provisions of this subsection as follows:

3 1. Any person who is convicted of a violation of the provisions
4 of this subsection shall be deemed guilty of a misdemeanor for the
5 first offense and shall be punished by imprisonment in the county
6 jail for not less than ninety (90) days nor more than one (1) year,
7 and a fine of not more than Two Thousand Five Hundred Dollars
8 (\$2,500.00); and

9 2. Any person who is convicted of a violation of the provisions
10 of this subsection after having been previously convicted of a
11 violation of this subsection or of Section 11-902 of this title
12 shall be deemed guilty of a Class B5 felony offense and shall be
13 punished by imprisonment in the custody of the Department of
14 Corrections for not less than one (1) year and not more than five
15 (5) years, and a fine of not more than Five Thousand Dollars
16 (\$5,000.00).

17 B. ~~1.~~ Any person who causes an accident resulting in great
18 bodily injury to any person other than himself or herself while
19 driving or operating a motor vehicle within this state and who is in
20 violation of the provisions of subsection A of Section 11-902 of
21 this title may be charged with a violation of the provisions of this
22 subsection. Any person who is convicted of a violation of the
23 provisions of this subsection shall be deemed guilty of a Class B1
24 felony offense punishable by imprisonment in the custody of the

1 Department of Corrections for not less than four (4) years and not
2 more than twenty (20) years, and a fine of not more than Five
3 Thousand Dollars (\$5,000.00).

4 ~~2. C.~~ As used in this ~~subsection~~ section, "great bodily injury"
5 means bodily injury which creates a bone fracture, protracted and
6 obvious disfigurement, protracted loss or impairment of the function
7 of a body part, organ or mental faculty, or substantial risk of
8 death ~~or which causes serious, permanent disfigurement or protracted~~
9 ~~loss or impairment of the function of any bodily member or organ.~~

10 SECTION 2. This act shall become effective November 1, 2026.

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12 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
13 OVERSIGHT, dated 03/03/2026 - DO PASS, As Amended and Coauthored.
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